

IAS PRELIMS/MAINS

Ecology & Environment

A stylized illustration of a green city skyline with various skyscrapers, wind turbines, and a sun, set against a light green background with a globe-like shape.

A COMPREHENSIVE COVERAGE

MODULE - 54

INDIA'S LAWS AND POLICIES - 2

1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

COASTAL REGULATION ZONES (CRZ)

- In 1991, the Ministry of Environment and Forests issued a notification under the EPA 1986 to regulate development activity on India's coastline.
- There have been about 25 amendments to this notification between 1991 and 2009, some of which have been based on the directions of the Supreme Court.



1 THE ENVIRONMENT (PROTECTION) ACT, 1986 (EPA)

COASTAL REGULATION ZONES (CRZ)

THE 2011 NOTIFICATION

- There are 4 categories of CRZ

1. CRZ I

- ✓ Ecologically sensitive areas such as mangroves, coral reefs, salt marshes, turtle nesting ground and the inter-tidal zone.

2. CRZ II

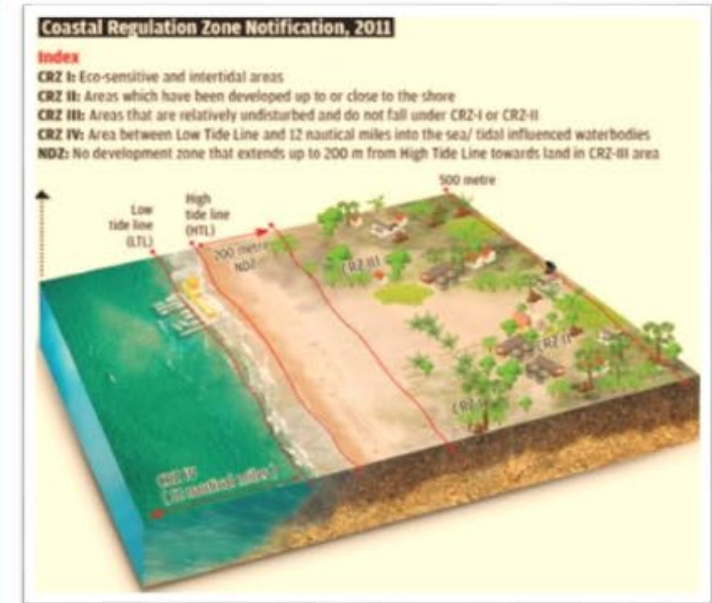
- ✓ Areas close to the shoreline, and which have been developed.

3. CRZ III

- ✓ Coastal areas that are not substantially built up, including rural coastal areas.

4. CRZ IV

- ✓ Water area from LTL to the limit of territorial waters of India (12 nautical miles).



COASTAL REGULATION ZONES (CRZ)

REGULATION

CRZ - I

- IA - Ecologically sensitive areas like mangroves, coral reefs, biosphere reserves etc.
- No new construction shall be permitted in CRZ-I except
 - ✓ Projects relating to the Department of Atomic Energy;
 - ✓ Construction of trans-harbour sea link and roads without affecting the tidal flow of water, between LTL and HTL.
- IB - Between Low Tide Line and High Tide Line in areas which are not ecologically sensitive, the following may be permitted
 - ✓ Exploration and extraction of natural gas
 - ✓ Construction of basic amenities like schools, roads, etc. for traditional inhabitants living within the biosphere reserves
 - ✓ Salt harvesting by solar evaporation of seawater
 - ✓ Desalination plants
 - ✓ Storage of non-hazardous cargo such as edible oil, fertilizers within notified ports

COASTAL REGULATION ZONES (CRZ)

REGULATION

CRZ - II

- Buildings are permissible on the landward side.
- Other activities such as desalination plants are also permissible.

CRZ - III

Areas that are relatively undisturbed and do not fall under either in Category I or II and also include rural and urban areas that are not substantially developed.

- Between 0-200 metres from HTL is a No Development Zone where no construction shall be permitted.
- Only certain activities relating to agriculture, forestry, projects of Department of Atomic Energy, mining of rare minerals, salt manufacture, non-conventional energy sources and certain public facilities may be permitted in this zone.
- Between 200-500 metres of HTL, those activities permitted in 0-200 metres zone and construction of houses for local communities and tourism projects are permissible.

COASTAL REGULATION ZONES (CRZ)



REGULATION



CRZ - IV

- The aquatic area from low tide line up to territorial limits is classified as CRZ-IV including the area of the tidal influenced water body.
 - ✓ There is no restriction on the traditional fishing undertaken by local communities.
 - ✓ No untreated sewage or solid waste shall be let off or dumped in these areas.



COASTAL REGULATION ZONES (CRZ)

REGULATION

PROCEDURE FOR CLEARANCES UNDER CRZ 2011

- A specific procedure has been provided in the 2011 Notification for obtaining project clearance
- Rapid Environment Impact Assessment (EIA) Report
- Disaster Management Report and Risk Management Report
- CRZ map indicating HTL and LTL demarcated
- No Objection Certificate from the concerned Pollution Control Boards
- The clearance accorded to the projects shall be valid for a period of five years.



COASTAL REGULATION ZONES (CRZ)

ECOLOGICALLY SENSITIVE AREAS (ESA) GIVEN SPECIAL PROVISIONS UNDER CRZ 2011

- Sunderbans, Gulf of Khambat and Gulf of Kutch, Malvan, Achra-Ratnagiri in Maharashtra, Karwar and Coondapur in Karnataka, Vembanad in Kerala, Bhaitarkanika in Orissa, Coringa in East Godavari and Krishna in Andhra Pradesh would be declared as Critical Vulnerable Coastal Areas (CVCA) and the integrated management plan would be prepared for each of these areas in consultation with the local communities.
- Beaches such as Mandrem, Morjim, Galgiba and Agonda in Goa have been designated as turtle nesting sites and protected under the Wildlife Protection Act, 1972.

No developmental activities shall be permitted in these areas.



COASTAL REGULATION ZONES (CRZ)

CRZ 2018

The Union Cabinet has approved the Coastal Regulation Zone (CRZ) Notification, 2018 which seeks to replace the existing CRZ Notification of 2011.

SALIENT FEATURES

1. For CRZ-III (Rural) areas, two separate categories have now been stipulated as below:
 - (a) CRZ-III A - These are densely populated rural areas with a population density of 2161 per square kilometre as per 2011 Census. Such areas shall have a No Development Zone (NDZ) of 50 meters from the HTL as against 200 meters from the High Tide Line stipulated in the CRZ Notification, 2011. The reduction is made on the ground that densely populated areas have similar characteristics as urban areas.
 - (b) CRZ-III B - Rural areas with population density of below 2161 per square kilometre as per 2011 Census. Such areas shall continue to have an NDZ of 200 meters from the HTL.

COASTAL REGULATION ZONES (CRZ)

CRZ 2018

SALIENT FEATURES

2. Tourism infrastructure permitted in coastal areas:

- ✓ Temporary tourism facilities such as shacks, toilet blocks, change rooms, drinking water facilities etc. have now been permitted in Beaches.
- ✓ Such temporary tourism facilities are also now permissible in the "No Development Zone" (NDZ) of the CRZ-III areas as per the Notification.
- ✓ However, a minimum distance of 10 m from HTL should be maintained for setting up of such facilities.



COASTAL REGULATION ZONES (CRZ)

CRZ 2018

SALIENT FEATURES

3. CRZ Clearances streamlined:

- ✓ The procedure for CRZ clearances has been streamlined.
- ✓ Only such projects/activities, which are located in the CRZ-I (Ecologically Sensitive Areas) and CRZ IV (area covered between Low Tide Line and 12 Nautical Miles seaward), shall be dealt with for CRZ clearance by the Ministry of Environment, Forest and Climate Change.
- ✓ The powers for clearances with respect to CRZ-II and III have been delegated at the State level with necessary guidance.



COASTAL REGULATION ZONES (CRZ)

CRZ 2018

SALIENT FEATURES

4. No Development Zone (NDZ) of 20 meters has been stipulated for all Islands:

- ✓ For islands close to the main land coast and for all Backwater Islands in the mainland, in wake of space limitations and unique geography of such regions, bringing uniformity in treatment of such regions, NDZ of 20 m has been stipulated.



COASTAL REGULATION ZONES (CRZ)

CRZ 2018

SALIENT FEATURES

5. Pollution abatement:

- ✓ In order to address pollution in Coastal areas treatment facilities have been made permissible in CRZ-I B area subject to necessary safeguards.



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